

**Research and
Special Programs
Administration**

FEB 16 2005

DOT-E 7541
(SIXTH REVISION)

EXPIRATION DATE: December 31, 2006

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: E.I. DuPont de Nemours & Company, Inc.
Wilmington, DE
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of certain flammable and nonflammable compressed gases in non-DOT specification portable tanks subject to the limitations and special requirements specified herein. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.315(a) in that non-DOT specification portable tanks are not authorized, except as specified herein.
5. BASIS: This exemption is based on the application of E. I. DuPont de Nemours & Company dated January 21, 2005, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):**FEB 16 2005**

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Dichlorodifluoromethane or Refrigerant gas (R-12)	2.2	UN1028	N/A
1-1 Difluoroethane or Refrigerant gas (R-152a)	2.1	UN1030	N/A

7. SAFETY CONTROL MEASURES:- PACKAGING - Prescribed packaging is a non-DOT specification portable tank having a minimum design pressure of 180 psig and a nominal water capacity of 5100 gallons, mounted inside an ISO frame. In addition:
1. Each tank must comply with Stefi Sovigal's drawing CPS 85.3 and related drawings and calculations on file with the Office of Hazardous Materials Exemptions and Approvals.
 2. Total pressure relief device capacity must be at least 883,200 SCFH.
 3. Each tank must be filled by weight. Gross weight of the filled units must not exceed 52,800 pounds.
 4. Test certificates on each tank must be on file with the OHMEA prior to the first shipment.
 5. No new construction is authorized after January 1, 1986.
8. SPECIAL PROVISIONS:
- a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.

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- b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.
- c. The driver assigned to each motor vehicle must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire, or accident.
- d. Each portable tank must be reinspected and retested in accordance with § 180.605 as prescribed for DOT Specification 51 portable tanks.
- e. MARKING: Each portable tank must be plainly marked on both sides near the middle, in letters at least two inches high on a contrasting background, "DOT-E 7541".
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo vessel.
10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this exemption must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

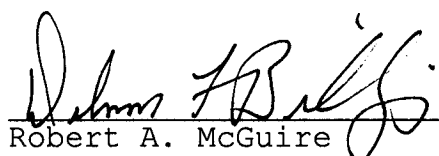
Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

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No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this exemption are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this exemption must notify the Associate Administrator for Hazardous Materials Safety -- OHMEA, in writing, of any incident involving a package, shipment or operation conducted under terms of this exemption.

Issued in Washington, D.C.:


Robert A. McGuire

for Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: sln